

Physicians of Southwest Washington
NETWORK PROVIDER AGREEMENT
PacificSource

With

LEGAL PRACTICE NAME RadiantCare Physicians, PLLC

TAX ID #: 91-2018691

ORG NPI #: 1851378160

This PROVIDER AGREEMENT (“Agreement”) is a contract made and entered into by and between **PHYSICIANS OF SOUTHWEST WASHINGTON, L.L.C.** a Washington corporation (hereinafter referred to as “**PSW**”) and RadiantCare Physicians, PLLC (hereinafter referred to as “**PROVIDER**”).

EFFECTIVE DATE

The effective date of this Agreement is 9/1/2023 (hereinafter the “Effective Date”).

RECITALS

WHEREAS, PSW is a duly licensed corporation, domiciled in the State of Washington and organized and operating under applicable state law; and

WHEREAS, PSW is an Independent Physician Association that wishes to serve as an agent of health care services providers for the purpose of negotiating and contracting, either directly or through an intervening entity, with health plans for those health care services providers to provide health care services to persons served by those plans. PSW arranges for hospital and medical services covered under its health plans contracts to persons eligible for such services (the "Enrollees") through contractual agreements with hospitals, physicians, and other healthcare services providers; and

WHEREAS, Provider is a Facility, Physician, Group Practice, Health Care Practitioner, supplier or entity which holds (or whose individual members hold, as applicable) all required licenses, registrations, certificates and/or accreditations as required by law for providing health care services in the state of Washington. Provider is engaged in the business of providing health care services and is prepared to provide such services to Enrollees, on the terms and subject to the conditions of this Agreement, and

NOW, THEREFORE, PSW and Provider agree to the terms and limitations stated in this Agreement, including Exhibits A and B. as may be mutually agreed to in writing from time to time:

This Agreement including the Exhibits and Appendices referenced above constitutes the entire understanding between PSW and Provider and supersedes any and all written or oral agreements, representations, or understandings between PSW and Provider (including, if applicable, as an individual Provider if now contracting through a Group Practice.) There are no conditions precedent to the effectiveness of this Agreement other than as stated herein. There are no related collateral agreements between PSW and Provider that are not referenced herein. The Agreement shall take effect on the Effective Date shown above.

WHEREAS, PSW desires to contract with Provider for certain services to be provided to Enrollees of Medical Plans; and,

NOW, THEREFORE, in consideration of mutual promises, covenants and agreements contained in this Agreement, the parties agree as follows:

CONTRACT EXHIBITS AND APPENDICES

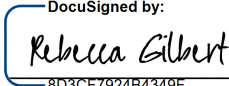
PSW and Provider hereby agree that the following Appendices and Exhibits are part of this Agreement and the following bind PSW and Provider and are incorporated herein.

EXHIBITS

EXHIBIT A	List of commercial health plans and networks
EXHIBIT B	PacificSource plan reimbursement by product

IN WITNESS WHEREOF, the parties hereto have executed and delivered this Agreement in duplicate original.

Effective date: 9/1/2023

By: 
Signature
8D3CF7924B4349F...

Rebecca Gilbert

Print or Typed Name
Practice Manager

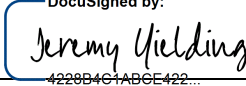
Title/Authority
9/19/2023

Date Signed

Tax ID #: 91-2018691

Mailing Address:
4525 3rd Ave SE, Suite 100
Lacey, WA 98503

PHYSICIANS OF SOUTHWEST
WASHINGTON, LLC

By: 
Signature
4228B4C1ABCE422...

Jeremy
Yielding

Print or Typed name
Chief Operating Officer

Title/Authority
9/19/2023

Date Signed

Mailing Address:
1300 Evergreen Park Dr SW
Olympia, WA 98502

I. DEFINITIONS

- 1.1 “Benefit Plan” shall mean the Covered Services, Copayments, Coinsurance and Deductible requirements, and limitations and exclusions contained in the contract between Health Plan and a Member or Subscriber Group.
- 1.2 “Claim” shall mean a statement prepared by a Provider for the purpose of completely itemizing all services and treatments provided to, and identifying all diagnoses for, a Member, which allows Health Plan to determine a Member’s available benefits for Covered Services.
- 1.3 "Clean Claim" shall mean a Claim that contains no defect or impropriety, such as a lack of substantiating documentation, or particular circumstances requiring special treatment that prevents timely payments from being made on the Claim (e.g., requiring coordination of benefits). A Clean Claim does not include a claim from a Provider who is under investigation for fraud or abuse or a claim under review for Medical Necessity.
- 1.4 “Contracting Hospital” shall mean a hospital that has entered into an agreement with PSW or Health Plan to provide Covered Services to Health Plan Members.
- 1.5 “Coordination of Benefits” shall mean the determination of whether Covered Services provided to a Member will be paid for, either in whole or in part, under any other private or government health benefit plan or any other legal or contractual entitlement, including, but not limited to, a private group indemnification or insurance program.
- 1.6 “Copayment,” “Coinsurance,” and “Deductible” shall mean any portion of the allowed amount charged to a Member that is provided for in Health Plan’s reimbursements within this contract with Subscriber Groups or individuals.
- 1.7 “Covered Services” shall mean those Medically Necessary healthcare services and supplies which are within Provider’s license and scope of practice, which Provider routinely provides, and which a Member is entitled to receive from Health Plan pursuant to the applicable Benefit Plan.
- 1.8 “Dependent” shall mean a person who is enrolled in and covered under Health Plan on the basis of that individual’s family relationship with a Subscriber, in accordance with the provisions of the applicable contract between Health Plan and an individual or a Subscriber Group.
- 1.9 “Emergency” shall mean a medical condition that manifests itself by acute symptoms of sufficient severity, including severe pain, such that the failure to receive immediate medical attention could be reasonably expected to place the health of a person, or a fetus in the case of a pregnant woman, in serious jeopardy.
- 1.10 “Emergency Services” shall mean those Covered Services that are Medically Necessary to treat Emergency conditions.

- 1.11 “Health Facility” shall mean those Providers, including, but not limited to, hospitals, skilled nursing facilities, ambulatory surgery centers or home health agencies.
- 1.12 “PSW Physician” shall mean a Physician who is under contract with PSW to provide Covered Services to Members, and shall also mean other physicians requested by or acting on behalf of a PSW Physician.
- 1.13 “PSW Provider” shall mean any Provider other than a Physician who has entered into a contract with PSW to provide certain Covered Services to Members.
- 1.14 “Medical Group” shall mean a group of Physicians and/or Providers organized as a single professional entity that is recognized under state law as an entity to practice a medical profession, and which has entered into a contract with to provide Covered Services to Health Plan Members.
- 1.15 “Medically Necessary” shall mean those services that Health Plan determines, through its professional review process, are (i) appropriate for the symptoms and diagnosis or treatment of a Member’s medical condition, (ii) provided for the diagnosis, or the direct care and treatment of that medical condition, (iii) provided in accordance with standards of good medical practice, (iv) not primarily for the convenience of the Member or the Member’s provider of care and (v) the most appropriate level of service that can be safely provided to the Member.
- 1.16 “Member” shall mean any Health Plan Subscriber or Dependent as determined by Health Plan in accordance with the applicable eligibility requirements.
- 1.17 “Never Event” shall mean a serious adverse event that is determined by Health Plan to be preventable and within the control of the Provider. Additional information regarding Never Events can be found in the Provider Manual.
- 1.18 “Non-Covered Services” shall mean those services not eligible for coverage under the terms of the applicable Benefit Plan.
- 1.19 “Other Payor” shall mean other payors for healthcare services, including but not limited to Health Plan subsidiaries, self-funded employers, trusts, and governmental entities or authorized contracting agencies or divisions, with whom Health Plan has entered into a contract.
- 1.20 “Out-of-Area” with respect to PSW, shall mean that area that is outside of the PSW Service Area. With respect to Health Plan, “out-of-area” shall mean that area is outside of the Service Area of Health Plan.
- 1.21 “Participating” shall refer to those Physicians and Providers that have met the credentialing requirements of Health Plan and entered into contracts directly with PacificSource, or that participate indirectly by being a member or contracting with a

Participating Individual Practice Association, Medical Group, Physician-Hospital Organization or any other Provider contracting directly with Health Plan to provide Covered Services to Members.

- 1.22 “Physician” shall mean a person duly licensed and qualified to practice medicine or osteopathy in the state where his or her practice is located.
- 1.23 “Physician and Provider Complaint and Grievance Procedure” shall mean the system for the receipt, handling, and disposition of Physician and Provider complaints and grievances, as described herein and in the Provider Manual.
- 1.24 “Primary Care Practitioner” shall mean the Physician or Provider selected by a Member or attributed as a result of Member utilization, who shall have the responsibility of providing initial and primary care, and for referring, authorizing, supervising and coordinating the provision of all other Covered Services to the Member in accordance with Health Plan’s Quality Assurance and Utilization Management Programs (collectively referred to as “QA/UM Program”). A Primary Care Practitioner may be either a family practitioner, general practitioner, nurse practitioner, internist, pediatrician, obstetrician, gynecologist or other women’s healthcare provider as defined or limited by state law, or other Physician or Provider who has otherwise limited his or her practice of medicine to general practice or a Specialist Physician or Provider who Health Plan and PSW have mutually agreed to be designated as a Primary Care Practitioner.
- 1.25 “Prior Authorization” shall mean the processes for reviewing and authorizing specific Covered Services as specified herein.
- 1.26 “Provider” shall mean a Health Facility, a vendor or provider of healthcare supplies and equipment, or any healthcare practitioner other than a Physician. To the extent required by applicable law, Providers shall be licensed and/or certified according to federal and/or state law.
- 1.27 “Provider Manual” shall mean the policies and procedures adopted by Health Plan for the administration of health benefits and the implementation of the terms and conditions of this Agreement, as may be updated and/or amended from time-to-time.
- 1.28 “Quality Assurance Program” shall mean the program and processes established by Health Plan, and carried out by Health Plan in cooperation with PSW and other Participating Physicians and Providers to monitor, maintain and improve the quality of services provided to Members, as described in the Provider Manual.
- 1.29 “Referral” shall mean the process by which the Member’s Primary Care Practitioner directs the Member to seek Covered Services from other Physicians and Providers.
- 1.30 “Referral Authorization” shall mean the process by which Health Plan or its designee reviews and authorizes Referrals.

- 1.31 “Service Area of PSW” shall mean the geographic area where services are provided by PSW.
- 1.32 “Service Area of Health Plan” shall mean the geographic area defined by Health Plan for each network, as modified from time to time by Health Plan.
- 1.33 “Specialist Physician” shall refer to a Physician who practices a specialty and who has entered into a written agreement with PSW, Health Plan, or any other Participating Provider to provide Covered Services to Members upon Referral.
- 1.34 “Subscriber” shall mean the person who is the primary policyholder and responsible for payment to Health Plan, or whose employment or other status, except for family dependency, is the basis for eligibility for membership in Health Plan.
- 1.35 “Subscriber Group” shall mean the organization, firm, or other entity contracting with Health Plan to arrange for the provision of Covered Services for its employees or members and their Dependents.
- 1.36 "Usual and Customary Charges" means the average amount charged for a specific medical procedure or service in a given geographical area.
- 1.37 “Utilization Management Program” shall mean the programs and processes established and carried out by Health Plan or its designee, PSW, to authorize and monitor the utilization of Covered Services provided to Members, as described in the Provider Manual.

II. DUTIES OF PSW

- 2.1 Identification Cards. PSW shall require Health Plan to arrange for the issuance of identification cards to Enrollees. Enrollees will be instructed to present identification cards to Provider at the time services are requested. Such identification cards are not a verification of eligibility as an Enrollee or a guarantee of payment, but a means of providing information that Provider can easily use to verify eligibility with a Medical Plan. The cards will include a telephone number or other means for checking an Enrollee’s benefits and eligibility for benefits, including any limitations or conditions on services or benefits.
- 2.2 Benefit and Eligibility Determinations. PSW shall require Health Plan to confirm Enrollees eligibility for Covered Services upon request of Provider. The respective Health Plan shall have the sole authority to determine the eligibility of Enrollees for benefits and whether services are included under the terms of the Health Plan Subscriber Agreement. Provider shall not take any action or make any representations regarding eligibility or benefits without having obtained information from the Health Plan. Provider may appeal benefit and eligibility determinations in accordance with the policies and procedures of the respective Health Plan.

- 2.3 Administrative Policies and Procedures. PSW shall provide timely updates to Provider of all substantive changes to its Policies and Procedures. PSW shall work in conjunction with Health Plan provide notice of at least sixty (60) days for any changes in its Policies and Procedures that affect Provider's compensation or that affect Provider's obligations for health care service delivery, unless changes to federal or state law or regulations make such advance notice impossible, in which case notice shall be as soon as possible. Subject to the termination and continuity of care provisions of this Agreement, Provider may terminate this Agreement without penalty if it does not agree with the changes. No change may be made retroactive without the express consent of Provider.
- 2.4 Non-discouragement. PSW shall not in any way preclude or discourage Provider from informing Enrollees of the care they require, including various treatment options and whether, in Provider's view, such care is consistent with medical necessity, medical appropriateness or otherwise covered under the Enrollees Subscriber Agreement. PSW shall not prohibit, discourage or penalize Provider, if Provider is otherwise practicing in compliance with the law, from advocating on behalf of an Enrollee with PSW or a Medical Plan. However, nothing in this section shall be construed to authorize Provider to bind PSW or Health Plan to pay for any service.

Notwithstanding any other provision of this Agreement or law, PSW shall not prohibit directly or indirectly any Enrollees from freely contracting at any time to obtain any health care services outside Health Plan hereunder on any terms or conditions the Enrollees choose. Nothing in the section shall be construed to bind PSW for any services delivered outside a Medical Plan Subscriber Agreement.

- 2.5 PSW Medical Director. PSW shall designate PSW Medical Director for purposes of this Agreement.
- 2.6 Physician and Provider Complaint and Grievance Procedures. PSW and Provider shall comply with the complaint and grievance procedures established by Health Plan. Health Plan recognizes the right of a Provider to file a grievance as it relates to adverse benefit determinations involving medical necessity or procedures or services which are considered by Health Plan to be experimental and/or investigational. Providers are entitled to a single level of review and should submit a written grievance to Health Plan which identifies the Member, the procedure or service at issue, and specifies the Provider's reasoning for requesting Health Plan reverse the adverse benefit determination. The Provider has 180 days to initiate a first-level appeal of an adverse benefit determination. The time to appeal will start on the day the Provider receives notice of the adverse benefit determination. Health Plan will investigate and respond to the Provider, in writing, within thirty (30) days of receipt of the grievance. Health Plan shall have the option to deduct any Claims cost related to resolution of any such dispute, where it is determined the service is a Non-Covered Service or not Medically Necessary, from the compensation payable to Provider per this Agreement.

III. DUTIES OF PROVIDER

- 3.1 Provision of Covered Services. PSW in coordination with Health Plan, shall provide or arrange for the provision of Covered Services for Members enrolled in the Health Plan products associated with the listed Health Plan networks in Exhibit A. Services will be provided by or referred to PSW Participating Providers unless such services are not available from Provider or Participating Physicians and Providers (see Section 2.9). Nothing in this Agreement shall require Provider to directly provide or contract for all Covered Services and Provider may freely communicate with patients about their treatment, regardless of the benefit coverage limitations. This Agreement does not require Provider to provide a discount from Usual and Customary Charges for health care services that are not Covered Services.
- 3.2 Credentialing and Re-Credentialing. Provider shall comply with any and all credentialing and re-credentialing policies adopted by PacificSource, as may be revised or modified from time-to-time, and shall cooperate with any and all credentialing and re-credentialing activities which PacificSource may undertake. Failure to comply with such policies and/or cooperate with such activities is a material breach of this Agreement. Upon request, Provider shall provide PacificSource with a copy of its credentialing plan, and/or supply evidence of any or all Physician and Provider licensure. PacificSource's credentialing standards for Physicians and Practitioners shall adhere to applicable State of Washington administrative rules and statutes.
- 3.3 Provision of Services for Other Payors. Pursuant to each agreement with any Other Payor, Provider shall provide Covered Services to the Members or beneficiaries of that Other Payor pursuant to and in accordance with the provisions of this Agreement. To the extent of any inconsistency between this Agreement and any agreement with an Other Payor, this Agreement shall control.
- 3.4 Standard of Care. Provider shall comply with all applicable federal and state laws, licensing requirements, and professional standards, and shall provide or arrange for the provision of Covered Services in accordance with generally accepted medical and surgical practices and standards prevailing in the applicable professional community at the time of treatment, and in conformity with the law of the state in which the Provider is licensed.
- 3.5 Primary Care Practitioner. Health Plan will, at time of enrollment in a plan, encourage Members to select a Primary Care Practitioner. Upon selection and notification, the Primary Care Practitioner shall assume responsibility for coordinating, supervising, and monitoring the Members' overall healthcare, subject to the terms of this Agreement. Provider agrees to notify PSW in writing at least sixty (60) days in advance of the date that Provider or one of its Primary Care Practitioner will close medical practice to new patients or terminate the relationship with PSW. If this Agreement is terminated without cause, PacificSource shall cover approved services of a Primary Care Practitioner under

this Agreement for a period of at least sixty (60) days following notice of termination to the Member.

- 3.6 Facilities, Equipment and Personnel. Provider shall provide and maintain sufficient facilities and equipment, and shall provide sufficient personnel and administrative services, including any training that may be necessary, to perform the duties and responsibilities set forth in this Agreement.
- 3.7 Accessibility and Hours of Service. Provider shall provide or arrange for the provision of Covered Services to Members on a readily available and accessible basis, including, but not limited to, during normal business hours at the usual place of business of Provider. Such accessibility shall, adhere to State requirements, or in the absence of such, NCQA requirements, as detailed in the Health Plan Provider Manual. Provider shall arrange for an appropriate call schedule to provide for such availability and accessibility of services.
- 3.8 Member Advocate. PacificSource encourages Provider to inform Members of the care they require, including various treatment options, and whether in their view such care is consistent with medical necessity, medical appropriateness, or otherwise covered by the Member's service agreement with the health carrier. PacificSource does not prohibit, discourage, or penalize a Practitioner otherwise practicing in compliance with the law from advocating on behalf of a Member with PacificSource. Nothing in this section shall be construed to authorize Provider to bind PacificSource to pay for any service.
- 3.9 Care Management. Provider agrees to cooperate with and participate in PSW's contracted Health Plan and PSW's Care Management programs, and Enrollee appeals and grievances. For Care Management programs, this includes, but is not limited to, notification of admissions, applicable referral procedures, and reporting of clinical encounter data.

Provider further agrees to cooperate with PSW concurrent review and discharge planning procedures, by providing medical records and other necessary information regarding Enrollees' care in progress, length of stay and discharge status upon PSW's reasonable request. Provider agrees that such access and information provision will be timely and take place at no additional charge.

Provider acknowledges that Care Management services and functions may be performed by PSW or an affiliate or an outside Care Management entity designated by PSW.

- 3.10 Quality Improvement Programs. Provider will participate and/or promote applicable quality improvement programs, activities and initiatives established by PSW and any Health Plan, which may include, but is not limited to Centers for Medicare and Medicaid Services (CMS) quality improvement initiatives, National Committee for Quality Assurance (NCQA), Healthcare Effectiveness Data and Information Set (HEDIS) reporting, Risk adjustment Data Validation (RADV), Leapfrog, National Quality Corp., diagnosis code information sharing, and other initiatives geared towards improving quality, and value of Member's health care. Further details are available in the Provider Manual.

In addition, the above activities may include the collection of health data, responding to inquiries regarding member complaints and quality of care concerns; and responding to program evaluations and satisfaction surveys. Onsite reviews, if requested, will be scheduled during regular business hours and with reasonable prior notice to Provider.

- 3.11 Nondiscrimination. Provider shall not differentiate or discriminate in its provision of Covered Services to Members because of race, color, national origin, ancestry, religion, sex, marital status, sexual orientation, age or for any reason or purpose prohibited by applicable federal or state law. Provider shall make available Covered Services to Members in the same manner, in accordance with the same standards, and within the same time availability as offered to non-Member patients. Nothing in this Agreement shall prohibit a PSW Participating Provider from withdrawing from the care of a patient when, in his or her professional judgment, it is in the best interest of the patient to do so. Provider shall provide services to a Health Plan Member without regard to the covered person's enrollment in the plan as a private purchaser or as a participant in a publicly financed program of health care services.
- 3.12 Referrals. Provider shall refer Members only to PSW Physicians and Providers or Participating Physicians and Providers for the provision of Covered Services except in cases of Emergencies or if no PSW Physician or Provider or Participating Physician or Provider is available to perform the appropriate Covered Service. PSW shall make all other Referrals for Covered Services to Participating Physicians and Providers in accordance with Health Plan's Referral authorization policies as well as its Quality Assurance and Utilization Management Programs. Health Plan must approve Referrals to nonparticipating Physicians or Providers.
- 3.13 Member Medical and Billing Records. Provider shall establish and maintain a medical record for each Member. Each Member's medical record shall be opened upon the Member's first visit to Provider. The record shall contain that information normally included in accordance with generally accepted medical and surgical practices and standards prevailing in PSW's professional community. PSW shall facilitate the sharing of medical information with other Physicians and Providers in cases of authorized Referrals. Provider shall make records available to appropriate State or Federal authorities as required under applicable law. Subject to applicable Federal and State laws and professional standards regarding the confidentiality of medical records, Providers shall make available at no charge to Health Plan records that are necessary for coordination of benefits, quality assurance, utilization review, third party claims administration, underwriting, preexisting conditions investigations, and benefits administration. Provider and Health Plan shall abide by all state and federal laws and regulations pertaining to record confidentiality and security, including HIPAA. Provider shall provide Health Plan access to Member's medical and billing records during normal business hours and upon ten (10) days prior written request to Provider. Health Plan may access Member's medical and billing records (i) to determine Health Plan's liability prior to the payment of a Claim; or (ii) to investigate a Member's appeal or grievance. In addition, Health Plan shall abide by: (i) all applicable state and federal laws, including

the Health Insurance Portability and Accountability Act of 1996 (HIPAA); (ii) Provider's policies and procedures relating to the release, removal, and transfer of medical and billing records; and (iii) any applicable Member consent and release requirements. Provider shall have reciprocal audit rights, upon the same terms and conditions as those detailed herein, to a Member's medical and billing records for the purpose of auditing any claims payments, denials, or partial payments. Provider shall provide access to Member's medical and billing records to accreditation organizations such as The Joint Commission. Provider shall provide access to Member's medical and billing records to any authorized representative of a state or federal agency. Provider shall provide Members with access to their own medical and billing records, so long as such access is in accordance with: (i) all applicable state and federal laws, including the Health Insurance Portability and Accountability Act of 1996 (HIPAA); (ii) Provider's policies and procedures relating to the release, removal, and transfer of medical and billing records; and (iii) any applicable Member consent and release requirements. Health Plan may not access any medical and/or billing records for patients of Provider who are not past or present Health Plan Members.

- 3.14 Prescriptions. Subject to generally accepted medical and surgical practices and standards prevailing in PSW's professional community, PSW Participating Providers shall comply with any drug formularies and policies regarding the prescription of generic or lowest cost alternative brand name pharmaceuticals adopted by Health Plan, and shall recognize the authority of pharmacists to substitute generic drugs for trade name drugs consistent with federal and/or state law, subject to any "dispense as written" instructions given by the Provider.
- 3.15 Prior Authorizations. Prior authorization, also referred to as preauthorization, is the process by which Practitioners verify coverage and receive authorization from PacificSource before services or supplies are rendered. Prior authorization establishes care based on benefits available, medical necessity, appropriate treatment setting, and/or anticipated length of stay. Failure to preauthorize could result in the Member unknowingly becoming responsible for payment to a Practitioner for services or supplies not covered by this group policy. To request prior authorization, please contact the Health Plan Health Services department. See the Provider Manual for additional information regarding how and when to obtain prior authorizations. Failure to follow the prior authorization process may result in the services being deemed Non-Covered Services.
- 3.16 Promotional Materials. Provider agrees to display promotional materials provided by Health Plan and approved by PSW within Provider's office.
- 3.17 Out-of-Area Transfers. For any Health Plan Member who has selected or is attributed to Provider as his or her Primary Care Practitioner, but is receiving Emergency or other authorized care from non-Participating Hospitals, Physicians or Providers, Provider shall assist PacificSource in facilitating the transfer of that Member to a Participating Hospital. The Participating Hospital must be one in which the Member's attending Provider, or another suitable Participating Physician or Provider, as determined medically acceptable

by PSW and the attending PSW Provider subject to review by the Health Plan Medical Director, has medical staff privileges.

- 3.18 Coordination of Benefits and Subrogation. Provider agrees that the procedures used for Coordination of Benefits shall be in conformity with the applicable Subscriber Group Contract, the Health Plan Provider Manual, and applicable law. Refer to the Provider Manual for examples and explanations regarding Coordination of Benefits. The time limits for payment of a Claim subject to Coordination of Benefits shall be the same as the time limits in Section 5.3. The deadlines established in this subsection may be extended for the length of time a primary or secondary plan must wait for information needed from the Practitioner (e.g., medical records) or from the Member (e.g., motor vehicle accident information), in order to adjudicate the Claim.
- 3.19 Reciprocity and Other Participating Physicians and Providers. Provider agrees that should another Participating Provider request that Provider provide Covered Services for its patients who are Members, Provider shall provide and/or arrange for the provision of such services and accept payment consistent with the terms of Section 4 and Exhibit B.
- 3.20 Provider Manual. PSW shall make available a copy of the Provider Manual to Provider, which will be modified from time to time by Health Plan. Provider agrees to regularly review and abide by the terms therein.
- 3.21 Bill Review. Provider agrees to cooperate with any requests by PSW or Health Plan, or their agents to review any Claims or bills submitted by Provider to determine whether a bill submitted for a Covered Service rendered to a Member covered by a Benefit Plan, and subject under this Agreement, was properly billed relative to the services provided (as reflected on the medical record), and that payments made to Provider were accurate, in accordance with the terms and conditions set forth herein.
- 3.22 Locum Tenens Providers. PSW shall allow Provider to arrange for a substitute Provider for at least sixty (60) days during any calendar year and shall grant an extension if a Participating Provider demonstrates that exceptional circumstances require additional time away from his or her practice. At the time of substitution, the substitute Provider: (a) Must have a current Washington license and be legally authorized to practice in this state; (b) Must provide services under the same scope of practice as the Participating Provider; (c) Must not be suspended or excluded from any state or federal health care program; (d) Must have professional liability insurance coverage; and (e) Must have a current drug enforcement certificate, if applicable. In the event of a substitution as described herein, the Participating Provider agrees to bill for services rendered by the substitute Provider using the carrier's billing guidelines, including use of HIPAA compliant code sets, commonly known as the Q-6 modifier, or any other code or modifier that the Centers for Medicare and Medicaid Services (CMS) adopts in the future. Provider shall require any substitute provider to accept Health Plan's fee schedule for services performed while acting as a substitute Provider.

IV. DUTIES OF HEALTH PLAN

- 4.1 Administrative Services. Health Plan will collaborate with PSW to provide Participating Providers services, including: (i) providing orientation and education programs to PSW Providers and their office staff in the use of the administrative services described herein and in the Provider Manual; (ii) the maintenance of a Physician and Provider Complaint and Grievance Procedure; and (iii) provider credentialing services; (iv) all Referral Authorization services; (v) and claims and benefit administration services, including third party and Coordination of Benefit administration.
- 4.2 Final Medical and Mental Health Decisions. A doctor of medicine or osteopathy will be retained by Health Plan and shall be responsible for all final medical and mental health decisions relating to coverage or payment made by Health Plan. Practitioner disputes of such decisions will be handled pursuant to the dispute procedures listed Section 8.1.
- 4.3 Payment for Covered Services. PSW will require that PacificSource process claims of, and transmit payments to Provider for Covered Services that Provider renders to Enrollees, in accordance with the terms and conditions set forth in this Agreement, including any attached Appendices and Exhibits, and subject to the terms and limitations of this Agreement and the Subscriber Agreement.
- 4.4 Retrospective Review. PSW will require that PacificSource conducts any retrospective review determinations based solely on the medical information available to Provider at the time the service was provided. PacificSource shall complete retrospective review determinations within thirty (30) days of receipt of the necessary information. PacificSource shall not retrospectively deny coverage for Emergency and non-emergency care that had Prior Authorization at the time the care was rendered.
- 4.5 Notification of Adverse Benefit Determination. PSW will require that PacificSource notifies Provider of any adverse benefit determination that involves the pre-service denial of a treatment or procedure prescribed by the Provider.

V. COMPENSATION

- 5.1 Billing. Provider agree to submit billings to Health Plan directly for services and supplies rendered not later than three hundred and sixty five (365) days after services are provided and using current industry standard forms or in an electronic mode. Provider will submit billings, including full itemizations for charges (using current industry standard coding methods, when applicable), dates of service, and billing Health Plan as secondary insurance, when applicable. Additionally, Provider shall ensure that the amount billed to Health Plan is the same amount that would be billed to the general public and to other payors. Provider also agrees that claims received more than three hundred and sixty five (365) days from the date of service will not be reimbursed by Health Plan or Member.
- 5.2 Utilization Management Program. As a condition for payment for Covered Services, Provider agrees to participate in and comply with the QA/UM Program utilized by Health Plan and PSW to promote the efficient use of resources. Provider shall comply with and, subject to Provider's right to appeal as provided in this Agreement be bound by such

QA/UM Programs. Failure by Provider to comply with the requirements of this paragraph shall be deemed a material breach of this Agreement. For additional information regarding Health Plan's QA/UM Program, see the Provider Manual.

- 5.3 Compensation. Except as otherwise provided for in this Agreement, PSW shall require Health Plan pay Provider the lesser of the billed amount, or the terms set forth in **Attachment A**. Compensation shall be considered payment in full for Covered Services, except for Copayments, Coinsurance, Deductibles, or amounts due as a result of Coordination of Benefits or other third party liability. Any modifications to **Attachment A** shall be attached to this Agreement by written amendment, pursuant to Section 8.1.

Health Plan shall adhere to the following standards for the payment of Clean Claims: i) 95% of all monthly Clean Claims shall be paid within thirty (30) days of receipt; ii) 95% of all Claims are paid or denied within sixty (60) days; and iii) 1% interest per month must be paid on all non-denied and unpaid Clean Claims sixty-one (61) days or older when Health Plan does not meet the above standards on the unpaid amount of the Claim that is due. The interest will accrue from the date after the payment was due until the Claim is paid.

Health Plan will begin counting the number of days either on the day Health Plan actually receives the Claim, or on the day our representative (who performs claims handling, including pricing, on our behalf) receives the Claim - whichever day comes first. If additional information is necessary in order to process a Claim, Health Plan will notify Provider and the enrollee in writing of the delay, and provide an explanation of the additional information required. Health Plan will process the Claim not later than thirty (30) days after the date it receives the additional information.

To the extent that any payment(s) for Covered Services under the terms of this Agreement are based, either in whole or in part, on funds obtained from any state or federal program, of any nature, those payments are subject to modification as a result of any change in state or federal law, rule, regulation, or Executive Order.

- 5.4 Member Non-Liability. Provider shall look solely to Health Plan for compensation for Covered Services. Provider, or their designee or agent, shall not attempt to collect from Members any sums owed to PSW Provider by Health Plan, notwithstanding the fact that either party fails to comply with the terms of this Agreement. Provider further agrees that if Health Plan determines that a Covered Service was not Medically Necessary, or that Covered Services are provided outside of generally accepted treatment protocols, Provider shall not attempt to collect from Member or Health Plan any sums deemed not reimbursable by Health Plan unless the Member has agreed in writing to be financially liable for a Non-Covered Service prior to the rendering of the service; such written agreement must specifically state the amount for which a Member will be liable and must be made available from Provider to Health Plan upon request.

- 5.5 Member Hold Harmless. Pursuant to applicable state law, Provider agrees that:

- a. In no event, including but not limited to nonpayment by Health Plan, Health Plan insolvency, or breach of this Agreement, shall Provider bill, charge, collect a deposit from, seek compensation, payment or reimbursement from, or have any recourse against a Member or person acting on Member's behalf for services pursuant to this Agreement. This provision does not prohibit collection of Deductibles, Copayments, Coinsurance, and/or payment for Non-Covered services, which have not otherwise been paid by a primary or secondary issuer in accordance with regulatory standards for Coordination of Benefits, from Members in accordance with the terms of the Member's Benefit Plan.
 - b. Provider agrees, in the event of Health Plan's insolvency, to continue to provide the services promised in this Agreement to Members for the duration of the period for which premiums on behalf of the Member were paid to Health Plan or until the Member's discharge from inpatient facilities, whichever time is greater.
 - c. Notwithstanding any other provision of this Agreement, nothing in this Agreement shall be construed to modify the rights and benefits contained in the Member's health plan.
 - d. Provider may not bill the Member for Covered Services (except for Deductibles, Copayments, or Coinsurance) where Health Plan denies payments because the Provider has failed to comply with the terms or conditions of this Agreement.
 - e. Provider further agrees (i) that the provisions of (a), (b), (c), and (d) of this subsection shall survive termination of this Agreement regardless of the cause giving rise to termination and shall be construed to be for the benefit of Health Plan's Members, and (ii) that this provision supersedes any oral or written contrary agreement now existing or hereafter entered into between Provider and Members or persons acting on their behalf.
 - f. If Provider contracts with other Providers who agree to provide Covered Services to Members of Health Plan with the expectation of receiving payment directly or indirectly from Health Plan, such Providers must agree to abide by the provisions of (a), (b), (c), (d), and (e) of this subsection.
- 5.6 Never Events. Provider agrees not to seek payment from either Health Plan or Member for costs resulting from a Never Event.
- 5.7 Payment for Non-Covered Services. Provider may seek payment directly from or on behalf of Members for Non-Covered Services at Provider's usual and customary charges.
- 5.8 Copayments, Coinsurance and Deductibles. Provider shall be responsible for the collection of applicable Copayments, Coinsurance and Deductibles from or on behalf of Members.

- 5.9 Overpayment / Underpayment. Provider shall cooperate with the over and underpayment requirements of PacificSource.
- 5.10 Knowing Violations. Provider agrees and acknowledges that willfully collect or attempt to collect an amount from a Member knowing that collection to be in violation of this Agreement constitutes a class C felony under RCW 48.80.030(5).

VI. INSURANCE

- 6.1 Physician and Provider Liability Insurance. Provider will provide and maintain, at its sole expense, policies of general comprehensive liability and professional liability insurance. Such insurance coverage shall be either (i) "occurrence" coverage or (ii) "claims made" coverage with additional "tail" coverage, with coverage limits of not less than One Million Dollars (\$1,000,000) per incident and Three Million Dollars (\$3,000,000) annual aggregate. Such policies shall insure against any claim or claims for damage arising by reason of personal injury or death occasioned directly or indirectly in connection with the acts or omissions of Provider, its agents or employees pursuant to this Agreement. Provider shall notify Health Plan no less than ten (10) days before any reduction in coverage or revocation, suspension or other termination of any such policy.

Upon request, Provider will provide Health Plan with evidence of compliance with this section, in the form of a certificate of insurance or evidence of self-insurance or evidence in some other form as PSW will deem satisfactory

VII. TERM AND TERMINATION

- 7.1 Term of Agreement. The term of this Agreement shall be for one (1) year beginning on the Effective Date and shall automatically renew for successive one (1) year terms, unless terminated as set forth in this Agreement. Any modification of the rates and/or arrangements reflected in this Agreement must be in compliance with Section 8.1.
- 7.2 Termination.
- a. With Cause. Either Party may terminate this Agreement for cause by giving ninety (90) days prior written notice to the other Party.
 - b. Without Cause. Either Party may terminate this Agreement without cause by giving ninety (90) days prior written notice to the other Party.
- 7.3 Transfer of Records. In the event of termination of this Agreement, Participating Provider shall submit to Health Plan, or its designee, such information and records, or copies thereof, as Health Plan may request concerning its Members.

VIII. DISPUTE RESOLUTION

- 8.1 Dispute Resolution.

- a. Controversies between Provider and PSW shall be resolved, to the extent possible, by informal meetings and discussions in good faith between appropriate representatives of the Parties.
- b. Provider shall have the right to appeal payment or dispute health plan contract elements with PacificSource. PacificSource will allow Provider at least thirty (30) days after the action giving rise to the dispute to file an appeal. If PacificSource fails to grant or reject a request for review within thirty (30) days, the appeal/dispute can be considered “rejected” by PacificSource and may be submitted to mediation as set forth in Section 8.2. PacificSource shall render decisions on all appeals and disputes within a reasonable time period; in the event of a billing dispute, such PacificSource decision shall be rendered within sixty (60) days of the dispute receipt. All disputes shall be subject to the Physician and Provider Complaint and Grievance Procedure.

8.2 Mediation. In the event the Parties are unable to resolve the controversy, the parties hereto agree to first comply as indicated above, then to mediate any dispute under this Agreement. Mediation shall not be binding. Unless both parties otherwise agree, non-binding mediation must be pursued before any party may initiate litigation or binding arbitration. The dispute shall be submitted to non-binding mediation with a mediator who is mutually agreeable to the parties and who is not regularly under contract to or employed by either of the parties. If, after a period of sixty (60) days following commencement of mediation, the parties are unable to resolve the dispute, either party may initiate nonbinding arbitration or pursue and other remedy available at law.

IX. GENERAL PROVISIONS

9.1 Except as otherwise provided herein, this Agreement and its Attachments, including terms detailing compensation and health care service delivery, may be amended at any time during the term of this Agreement by PSW with sixty (60) days prior written notice to Provider unless changes to federal or state law or regulations make such advance notice impossible, in which case notice shall be provided as soon as possible. Provider shall have sixty (60) days from the date of such notice in which to object to the amendment by giving written notice of such objection to PSW. When PSW receives the objection it may, at its sole option, withdraw the amendment and notify Provider that the amendment has been withdrawn. If the amendment is not withdrawn, PSW shall notify Provider that the amendment has not been withdrawn and the amendment shall become effective as outlined. Provider may then terminate the Agreement by providing a ninety (90) day written notice to PSW, which shall be in compliance with Section 9.6. During this ninety (90) day period, the terms of the Agreement prior to the amendment shall control. Failure by Provider to provide written notice to PSW shall constitute Provider’s acceptance of said amendment. Except as provided above, any other amendment or modification of this Agreement shall be in writing and executed by each party hereto. Any provision of an amendment, addendum or exhibit, which conflicts with any provision of this Agreement, shall take precedence and supersede the conflicting

provision(s) of this Agreement. The applicable amendment(s), addendum(s) and exhibit(s) together with this Agreement, shall constitute the Agreement of the parties.

- 9.2 **Confidentiality.** Except to the extent that state or federal law requires disclosure, all information pertaining to the provisions of services under the Agreement will be treated in a confidential manner, and in compliance with state and federal laws. This applies to the following types of information: patient-specific information, the financial terms of the Agreement, or statistical reports shared between the parties to this Agreement.
- 9.3 **Waiver.** The waiver by either Party of a breach or violation of any provision of this Agreement shall not operate as or be construed to be a waiver of any subsequent breach thereof.
- 9.4 **Governing Law.** This Agreement shall be governed in all respects by the laws of the State of Washington.
- 9.5 **Non-Assignment.** Except as provided in this Agreement for Other Payors, this Agreement shall not be assigned, delegated, or transferred by either party without the written consent of the other party. Any assignment, delegation, or transfer without prior written approval shall be void.
- 9.6 **Notices.** Any notice required to be given pursuant to the terms and provisions hereof shall be in writing and shall be delivered by hand or sent by certified mail, return receipt requested, postage prepaid, to Provider and/or PSW at their respective addresses set forth on the signature page hereof or as otherwise designated in writing from time to time by the Parties.
- 9.7 **Hold Harmless.**

A. Indemnification of Provider. PSW agrees to indemnify Provider and to hold harmless Provider against any claims, actions, liabilities, damages, and losses (collectively “Damages”), including reasonable attorneys’ fees and costs, to the extent such Damages are caused by PSW’s negligence in discharge of duties or obligations which are solely the responsibility of PSW, its agents or employees during the term of this Agreement. Notwithstanding the foregoing, such indemnity shall not include any claim arising from an allegation of medical malpractice against the Provider, its agents or employees.

B. Indemnification of PSW. Provider agrees to indemnify PSW and to hold harmless PSW against any Damages (as defined in 9.7A), including reasonable attorneys’ fees and costs, to the extent such Damages arise or are related to (i) claims of malpractice or negligence for which Provider, its employees, agents or representatives are responsible, or (ii) the use or maintenance of any property, facilities or equipment by or under the direction of Provider or (iii) the performance of any activity by or under the direction or control of Provider during the term of this Agreement. This provision shall survive termination of this Agreement.

- 9.8 Independent Entities. None of the provisions of this Agreement are intended to create, be deemed or construed to create any relationship between the parties hereto other than that of independent entities or persons contracting with each other hereunder solely for the purpose of effecting the provisions of the Agreement. Neither of the parties hereto, nor any of their respective agents or employees, shall be construed to be the agent, employee or representative of the other.
- 9.9 Severability. If any provision of this Agreement is declared invalid or otherwise unenforceable, the enforceability of the remaining provisions shall be unimpaired, and the parties shall replace the invalid or unenforceable provision with a valid and enforceable provision that reflects the original intentions of the parties as nearly as possible in accordance with applicable law.
- 9.10 Entire Agreement. This Agreement, including any attachments and exhibits, contains all the terms and conditions agreed upon by the parties hereto regarding the subject matter of this Agreement. Any prior agreements, promises, negotiations, or representations, either oral or written, relating to the subject matter of this Agreement not expressly set forth in this Agreement are of no force or effect.
- 9.11 Continuity of Care. It is agreed that when continuity of care is required under the health plan or by applicable law, the parties agree to provide such continuity of care to enrollees as provided in the health plan or applicable law.
- 9.12 Conflict with Health Plan. This Agreement does not modify the benefits, terms, or conditions contained in a Member's Health Plan. In the event of a conflict between this Agreement and the terms of the Member's Health Plan, the benefits, terms, and conditions of the Member's Health Plan shall control.
- 9.13 Conflict with Provider Manual. In the event the terms and conditions of this Agreement conflict with the terms and conditions of the Provider Manual, the terms and conditions of this Agreement shall control.
- 9.14 Headings. The headings contained in this Agreement are included for purposes of convenience only, and shall not affect in any way the meaning or interpretation of any of the terms or provisions of this Agreement.
- 9.15 Non-Exclusivity. This Agreement is not exclusive, and nothing herein shall preclude either party from contracting with any other person or entity for any purpose. PSW makes no representation or guarantee as to the number of Health Plan Members who may select or Provider for the purpose of receiving Covered Services.

EXHIBIT A

List of Commercial Health Plans and Networks

[Provider Name]
Effective January 1, 2021

Provider agrees that all terms and conditions of this Agreement shall apply to its participation in the network(s) checked below. Changes may be made according to Section 8.1.

PacificSource Health Plans Commercial Networks

☒ Navigator

☒ Voyager

EXHIBIT B
[Group Name]
Physicians of Southwest Washington
Effective January 1, 2021
PacificSource plan reimbursement by product

These rates shall apply to the following PacificSource Commercial Networks: VOYAGER

SERVICE/PROCEDURE	MAXIMUM ALLOWABLE
Services listed in the CMS Physician Fee Schedule: National RVUs for services listed in the July 2017 Medicare Physician Fee Schedule	
MD, DO, DPM, DC, DCAN, DCLA, DCND, DCPT, PharmD	\$67.00 RBRVS conversion factor ^{1,2}
CNS, CRNA, ARNP (ML-2)	\$56.95 RBRVS conversion factor ^{1,2}
PHD, PSYD (ML-3)	\$56.95 RBRVS conversion factor ^{1,2}
PA (ML-4)	\$50.25 RBRVS conversion factor ^{1,2}
OD, PSYR (ML-5)	\$50.25 RBRVS conversion factor ^{1,2Le}
PT, OT, ND, AUD, MA, RD, SLP, LMW (ML-6)	\$46.90 RBRVS conversion factor ^{1,2}
LAc, LCSW, LMHC, SW, LPC, LMFT, BCBA, GenC (ML-7)	\$40.20 RBRVS conversion factor ^{1,2}
LMT, LMP, RN (ML-8)	\$26.80 RBRVS conversion factor ^{1,2}
Laboratory: Services listed in the CMS Clinical Diagnostic Laboratory Fee Schedule	100% of CMS allowed for the State of WA ³
Anesthesia: Services listed in the American Society of Anesthesiologists Relative Value Guide	\$52.00 per unit ASA Conversion Factor ⁴
Durable Medical Equipment, Prosthetics, Orthotics and Supplies: Services listed in the CMS DMEPOS & PEN Fee Schedules	100% of CMS allowed for State of WA ³
Injectables, Vaccines, Immunizations: Services listed in the CMS Drug Pricing Files	100% of CMS allowed ³
Services and Procedures without an established unit value listed above: PacificSource Health Plans may establish such unit values for purposes of its Maximum Allowable rate determination.	PacificSource Health Plans Default Fee Allowance (WA) ⁵

Note: Payment will be based upon the lesser of the billed amount or PacificSource negotiated rates in effect at the time the service or supplies are rendered or provided as specified above.

1. Services performed by a provider type not listed will be reimbursed consistent with PacificSource payment policies, and in accordance with State and Federal Law, unless specifically noted.
2. Facility and non-facility RVUs shall be used and determined by the setting in which the service occurs.
3. Schedules noted above shall be updated in accordance with CMS.
4. ASA Basic Unit Value and annual updates as defined by the American Society of Anesthesiologists Relative Value Guide. Time units shall be based on fifteen (15) minute increments.
5. PacificSource utilizes industry standard publications and rate methods to supplement codes not established by the above noted methodologies.

EXHIBIT B
[Group Name]
Physicians of Southwest Washington
Effective January 1, 2021
Reimbursement Schedule

These rates shall apply to the following PacificSource Commercial Networks: NAVIGATOR

SERVICE/PROCEDURE	MAXIMUM ALLOWABLE
Services listed in the CMS Physician Fee Schedule: National RVUs for services listed in the July 2017 Medicare Physician Fee Schedule	
MD, DO, DPM, DC, DCAN, DCLA, DCND, DCPT, PharmD	\$62.00 RBRVS conversion factor ^{1,2}
CNS, CRNA, ARNP (ML-2)	\$52.70 RBRVS conversion factor ^{1,2}
PHD, PSYD (ML-3)	\$52.70 RBRVS conversion factor ^{1,2}
PA (ML-4)	\$46.50 RBRVS conversion factor ^{1,2}
OD, PSYR (ML-5)	\$46.50 RBRVS conversion factor ^{1,2}
PT, OT, ND, AUD, MA, RD, SLP, LMW (ML-6)	\$43.40 RBRVS conversion factor ^{1,2}
LAc, LCSW, LMHC, SW, LPC, LMFT, BCBA, GenC (ML-7)	\$37.20 RBRVS conversion factor ^{1,2}
LMT, LMP, RN (ML-8)	\$24.80 RBRVS conversion factor ^{1,2}
Laboratory: Services listed in the CMS Clinical Diagnostic Laboratory Fee Schedule	85% of CMS allowed for the State of WA ³
Anesthesia: Services listed in the American Society of Anesthesiologists Relative Value Guide	\$48.00 per unit ASA Conversion Factor ⁴
Durable Medical Equipment, Prosthetics, Orthotics and Supplies: Services listed in the CMS DMEPOS & PEN Fee Schedules	85% of CMS allowed for State of WA ³
Injectables, Vaccines, Immunizations: Services listed in the CMS Drug Pricing Files	90% of CMS allowed ³
Services and Procedures without an established unit value listed above: PacificSource Health Plans may establish such unit values for purposes of its Maximum Allowable rate determination.	PacificSource Health Plans Default Fee Allowance (WA) ⁵

Note: Payment will be based upon the lesser of the billed amount or PacificSource negotiated rates in effect at the time the service or supplies are rendered or provided as specified above.

- Services performed by a provider type not listed will be reimbursed consistent with PacificSource payment policies, and in accordance with State and Federal Law, unless specifically noted.
- Facility and non-facility RVUs shall be used and determined by the setting in which the service occurs.
- Schedules noted above shall be updated in accordance with CMS.
- ASA Basic Unit Value and annual updates as defined by the American Society of Anesthesiologists Relative Value Guide. Time units shall be based on fifteen (15) minute increments.
- PacificSource utilizes industry standard publications and rate methods to supplement codes not established by the above noted methodologies.